

Syllabus.

AMERICAN TOBACCO CO. ET AL. v. UNITED STATES.

NO. 18. CERTIORARI TO THE CIRCUIT COURT OF APPEALS FOR THE SIXTH CIRCUIT.*

Argued November 7, 8, 1945.—Decided June 10, 1946.

1. When there is a combination or conspiracy to control and dominate interstate trade and commerce in a commodity, coupled with the power and intent to exclude competitors to a substantial extent, the crime of monopolization under § 2 of the Sherman Anti-Trust Act is complete; and the actual exclusion of competitors is not necessary to the crime. Pp. 784-787, 798, 808-815.
2. To support a conviction for conspiring to monopolize certain trade in violation of the Sherman Act, it is not necessary to show power and intent to exclude *all* competitors, nor to show a conspiracy to exclude *all* competitors. P. 789.
3. Under § 2 of the Sherman Act, it is the crime of monopolizing for parties to combine or conspire to acquire or maintain the power to exclude competitors from any part of the trade or commerce among the several States or with foreign nations, provided (a) they also have such a power that they are able, as a group, to exclude actual or potential competition from the field and (b) they have the intent and purpose to exercise that power. P. 809.
4. It is not the form of the combination or the particular means used but the result to be achieved that the statute condemns. P. 809.
5. It is not important whether the means used to accomplish the unlawful objective are in themselves lawful or unlawful. P. 809.
6. No formal agreement is necessary to constitute an unlawful conspiracy. P. 809.
7. The essential combination or conspiracy in violation of the Sherman Act may be found in a course of dealing or other circumstances as well as in an exchange of words. Pp. 809, 810.
8. Neither proof of exertion of the power to exclude nor proof of actual exclusion of existing or potential competitors is essential to sustain a charge of monopolization under the Sherman Act. P. 810.

*Together with No. 19, *Liggett & Myers Tobacco Co. et al. v. United States*, and No. 20, *R. J. Reynolds Tobacco Co. et al. v. United States*, on certiorari to the same court, argued and decided on the same dates.